Kandivali land case (2011)

Area: *13.28 acres*

The plot in Kandiviali, Mumbai, leased to the army for 99 years by the state government, was allegedly illegally sold and developed into a housing project by local authorities. Senior officers also accused. CBI probe on



AFP

Nagrota land encroachment (2018)

Area: *12 acres*

Senior BJP leader Nirmal Singh accused of encroaching on vacant army land adjacent to the Nagrota army base in Jammu. Land later sold to builder. Case pending in courts

Badami Bagh (2018)

Area: *1.3 acres*

Two hotels allowed to be constructed and run by private individuals in contravention of rules in Badami Bagh cantonment in Srinagar, Kashmir, the headquarters of the important 15 Corps. CBI probe has booked former officers of the cantonment board and others. Case going on

Pune scam where a former army vice chief (since cleared) and another senior officer were accused of granting land inside the Pune cantonment to a builder.

Why Scams Occur

One reason why defence land can be so easily preyed upon is the dual role of the army (or the navy or the IAF), which is the custodian of all plots of land, and the MoD's Directorate General of Defence Estates (DGDE), which maintains the land records, in managing them. While the army is responsible for keeping land free of encroachment, the crucial decision of leasing land to a third party—and all the paperwork—rests with the defence estate officer of the DGDE. This leads to each party blaming the other when encroachments take place. A key MoD official claims that corrupt DGDE officials were involved in the Adarsh and Sukna scams. A serving army officer admits that vacant land like camping grounds and abandoned airfields are more prone to encroachment. MoD officials add that in many places it is not possible to either erect boundary walls or fences or provide round the clock vigil.

The institutional apathy of the army over keeping defence land safe is also to blame. Officials claim that the army tends to prioritise operational aspects (combat readiness, training and strategy) over all else. This has led to "neglect in land management". Lt Gen. Vijay Oberoi, former vice chief of army staff, says while fraudulent legal transfer of defence land has to be blamed on corrupt DGDE staff, "the army also shares some blame due to its indifference, as it focuses more on operations than on administration or logistics." He adds that since most senior officers are focused on military needs, non-operational work is often delegated to lower levels of the administrative structure. This indifference allows corrupt officials to exploit the system. "This operational bias is a cultural issue within the army," says an army officer.

MANY PLOTS CAN'T BE ENCLOSED. AND EVEN WHEN A LAND GRAB IS FOUND OUT, RECLAIMING IT TAKES FOREVER

Even when a land grab is discovered, evicting encroachers and reclaiming it is cumbersome, bogged down by long judicial processes and bureaucratic red tape. The delay allows encroachments to become entrenched. In addition to top military and MoD officials, the alleged involvement of influential politicians, like in the Adarsh scam, also stops such fraud from coming to light.

"It's a nexus of politicians, district administration officials, bureaucrats and builders. Moreover, since it does not affect many, nobody in the government takes a keen interest to get back ownership of the land," says the army official.

How to Stop the Menace

Introducing stringent checks, audits and a centralised digital database of lands are crucial to preventing scams. The process should also include third-party oversight to keep a check on those who stand to gain from illicit transactions. An MoD official says that there have been calls to reduce the autonomy of the DGDE and bring land management under a "more independent regulatory body".

In 2021, then defence secretary Ajay Kumar had proposed that organisations in need of land, like the National Highways Authority of India, metro rail corporations and state governments can offer Equal Value Infrastructure (EVI), or land of equal value, in lieu of defence land. The armed forces could thus meet some of their infrastructure needs in lieu of some of its excess land. The policy has yet to be implemented.

While strengthening existing laws governing the transfer and use of defence lands is needed, enacting punitive laws for officials involved in fraudulent transactions can act as a deterrent. In addition, a dedicated task force within the military could be established to monitor the status of defence lands. It could coordinate with civilian authorities and take prompt action against encroachments.

Reforming the DGDE, fostering a cultural shift within the military and ensuring strict adherence to rules are keys to halt the exploitation. Else, corruption and mismanagement will eat away at the nation's military estate. ■